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November 5, 2026

Via Email: *bill_y_lu@yahoo.com* & jie_h_hu@yahoo.com

Yibiao Lu
Jie Hu
17756 George Moran Dr.
Eden Prairie, MN 55347

Re: ***Yibiao Lu and Jie Hu v. Fire Insurance Exchange***
Court File No.: 27-CV-26-11606
Our File No.: 5490

Dear Yibiao Lu and Jie Hu:

This correspondence is in response to your October 29, 2026, November 1, 2026, and November 4, 2026 "meet and confer" letters, in which you include nine pages of claimed deficiencies with our recent discovery responses. In your email transmitting the "meet and confer" letters, you request specific responses to the various items therein on three separate dates.

First, as previously explained in our Response No. 1 to Plaintiffs' Request for Production of Documents, we advised that due to technical difficulties, we needed additional time to produce certain documents and explained that we would supplement our discovery as soon as possible. This included the claim file/claim notes. Despite this, you sent a "meet and confer" letter stating that we didn't produce the claim notes or the claim file, after having received our responses which stated, in part, "Due to technical difficulties, Defendant will supplement its document production with the redacted Full Claim file/Claim notes as soon as possible." When you asked us to reschedule/delay the motion hearing we scheduled, without providing a reason for your request, we accommodated you. When we advised you of a technical issue which required additional time to provide our document production, you sent a "meet and confer" letter. We would request that, moving forward, you offer the same professional courtesies that we have consistently offered to you.

FIE submitted its Supplemental Response to Plaintiffs' First Set of Requests for Production of Documents and supplemental document production (FIE 1804-FIE 2340) today. At this point, you have received the entire discoverable file, with a privilege log identifying any withheld or redacted documents. This should address all items in your October 29, 2026 and November 1, 2026 emails related to document requests as the entire file has been produced subject to the privilege log. To the extent you are not satisfied, you will need to address your concerns with the court as we have produced the entire discoverable file.

Second, in response to your three-page "meet and confer" email of November 1, 2026, we note the following:

Item 1: As you know, you served 141 Requests for Admission on FIE. We objected and asked that you limit them to 25 or that we would limit them to 25. Your response refused to agree to limit the RFA's to 25, so we answered the first 25 RFAs. At this point, we do not agree to answer additional RFAs. The discovery you have served to date has been oppressive and not proportional to the needs of the case. Our request that you agree to limit the RFAs, without court intervention failed, and instead was met with additional specific demands, which have continued through November 4. We do not agree to answer additional RFAs at this time. We are very concerned with the oppressive and abusive nature of the discovery you have served to date and your lengthy meet and confer demands.

We note that you ask for a supplement to our Answer to Interrogatory No. 7 to include "stating which jurisdiction the First Affirmative Defense concerns and identifying any other person Defendant contends should be a party." We answered the Interrogatory subject to objections. We do not have an obligation to provide you with legal conclusions regarding our affirmative defenses.

Next, you include a separate request for information that was not included in your Interrogatories to FIE. You request FIE to "state whether Defendant contends any act in handling the claim was performed for an entity other than Fire Insurance Exchange." This request was not included in your discovery and is not properly included in a "meet and confer" letter regarding discovery responses. Notwithstanding the fact that this request was not included in an Interrogatory to us, you can review the Initial Disclosures and the entire document production, which includes the entire file, which identifies those involved in handling the claim.

Item 2: This includes two pages of statements regarding the 2020 claim file and discovery requests/responses related thereto. Any materials regarding the 2020 hail claim that were included in our client's 2024 claim file have been produced to you. Those documents not only include photographs with a red arrow pointing to the windows found to be damaged in 2020, they include the estimate, including lines 1-4 (related to covered windows), which demonstrates that the two full casement window sets (3 unit front dining room and 4 unit rear porch casement) were paid for. Further, Answer to Interrogatory No. 2 provides "In 2020, the 2 windows that were found to have damage and were included in the February 18, 2022 Settlement Package included the replacement of

the main level window to the left of the front entry (3 pieces of glass) and the full replacement of the north facing window (4 pieces of glass) at the rear four season porch." We have provided a full and complete response to any discovery related to the 2020 claim. We provided any claim file materials from the prior claims (2014, 2015, and 2020) that were included in FIE's claim file for your August 13, 2024 loss. The full claim files for prior losses are not relevant, nor is the request for said documents proportional to the needs of this case.

It is our position that we have provided you with complete discovery responses and a complete document production. We do not have an obligation to sift through the document production with you and explain what each document represents. Answer to Interrogatory No. 2 is a very specific and complete answer and yet you still state that "It identifies no supporting document and does not state whether any information was withheld under the objections." This is an example of abusive discovery. We provided a complete answer, and the 2020 claim file materials contained within the 2024 claim file were produced. Further, Interrogatory No. 2 does not even contain a request to identify supporting documents, so again, this is not appropriate to include in a meet and confer letter.

On November 4, 2026, we received yet another "meet and confer" email referring to additional items that you wish to be supplemented, related to our discovery responses. Again, at this time, we have produced FIE's entire discoverable file concerning your August 14, 2024 claim for hail damage which you allege occurred on July 13, 2024. You have sent 9 pages of "meet and confer" items making additional demands despite the fact that all of the information/documentation requested, to the extent that it exists, has been produced to you, subject to any applicable privilege. In your November 4, 2026 email, you state that producing and referring to documents as part of an answer to interrogatory is not permitted unless the answer specifies the records in sufficient detail as to permit the interrogating party to locate and to identify, as readily as can the party served, the records from which the answer may be ascertained. You have served abusive and oppressive discovery. Following receipt of our discovery responses and document production, you have served no less than three "meet and confer" emails, consisting of 9 pages. We have produced our client's entire discoverable file, which consists of 2,340 pages of documents. It is our position that our answers/responses/document production have been in accordance with the Rules of Civil Procedure. Specifically, with over 2,340 pages of documents produced, you would be able to locate and identify any document referenced in our discovery responses as readily as our office. Your requests are not proportional to the needs of the case and are overly burdensome and oppressive. We have provided full and complete responses to your discovery.

As you know, you invoked the appraisal provision of your Policy. In your October 29th, 2026 email, you state, in part, that "What the panel was asked to decide and what it actually evaluated is the central disputed question in this case . . ." However, you appear to have a general misunderstanding of how the appraisal process works and the legal implications related thereto. In our opinion, your misunderstanding has led to abusive and oppressive discovery in this case, and we will request court assistance in limiting the scope of discovery moving forward as needed.

In your Demand for Appraisal, you included Windows, Siding (repaint) and Siding (R&R). What that means is that you notified FIE that you disagree with the amount of loss on your claim and identified the items that are in dispute to be considered by the appraisal panel. The appraisal panel then inspected the alleged damage, as to all of the windows and the siding on your home and they identified only items that they found to be hail damaged from the reported date of loss. In your case, the Appraisal Award included two window units. This does not mean that the appraisers did not examine all of the windows on your home. Actually, the opposite is true. The Appraisal Award indicates that, after the appraisal panel's inspection of all of the windows on your home, your appraiser and the umpire, agreed that only two windows were damaged by hail on the alleged loss date of July 13, 2024. They further found no damage to the siding (repaint or R&R). As such, the Appraisal Award is a binding determination of the amount of loss related to your claim.

We refer you to Minn. R. Civ. P. 1 and 26.02 regarding the scope of discovery and proportionality requirements. We are hopeful that the supplemental document production fully addresses the issues identified in your October 29 and November 1 emails. We wish to resolve these issues without court involvement. However, we have provided complete discovery responses, produced FIE's entire file subject to the privilege log, and we believe we have complied with the Rules of Civil Procedure.

Sincerely,

/s/ Mary J. Baskfield

Mary J. Baskfield
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